NGONIDZASHE MUTIBA
versus
THE STATE

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE; 10 April 2026

Bail Pending Appeal

Applicant in person
F I Nyahunzvi, for the respondent

CHIKOWERO J:

[1] This is an application for bail pending appeal to the Supreme Court. The applicant has appealed the judgment of this court dismissing the applicant's appeal against the judgment of the magistrates court convicting him of six counts of robbery as defined in s 126 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] and one count each of unlawful possession of firearms and ammunition and unlawful possession of explosives in contravention of s 4 (1)(2) of the Firearms Act [*Chapter 10:09*] and s 3(1)(2) of the Explosives Act [*Chapter 10:08*] respectively.

[2] The application is opposed.

[3] The governing principles in an application for bail pending appeal are settled in this jurisdiction. See *S* v *Labuschagne* 2003(1)644(S) and *S* v *Manyange* 2003(1) ZLR 21(H).

[4] In *S* v *Dzvairo* 2006(1) ZLR 20(H) PATEL J (as he then was) said at 60F – 61A:

> "Where bail after conviction is sought the onus is on the applicant to show why justice requires that he should be granted bail. The proper approach is not that bail should be granted in the absence of positive grounds for refusal but that in the absence of positive grounds for granting bail it will be refused. First and foremost, the applicant must show that there is a reasonable prospect of success on appeal. Even where there is a reasonable prospect of success, bail may be refused in serious cases, notwithstanding that there is little danger of the applicant absconding. The Court must balance the liberty of the individual and the proper administration of justice, and where the applicant has been tried and sentenced it is for him to tip the balance in his favour. It is also necessary to balance

> the likelihood of the applicant absconding as against the prospects of success, these two factors being interconnected because the less likely are the prospects of success the more inducement there is to abscond. Where the prospect of success on appeal is weak, the length of the sentence imposed is a factor that weighs against the grant of bail. Conversely, where the likely delay before the appeal can be heard is considerable, the right to liberty favours the granting of bail."

[5] I consider that there is no prospect of success on appeal. The appellant was arrested after being lured by one of his then co-accused who had been arrested prior. On beholding the police the appellant took to his heels only to be pursued and apprehended after a high speed chase. He led the police to a hideout in Chitungwiza where other members of the gang of robbers were arrested. Thereafter, he also led the police to another hideout at a farm in Norton where more members of the gang were arrested. He had warned the police to raid the farm hideout at night as his fellow gang members were armed. The police had to rope in their peers in the canine section. The raid at the farm not only resulted in the arrest of other members of the gang but it led to the recovery of firearms, ammunition and explosives. The firearms were subjected to forensic examination which in turn linked the same to various robbery scenes the subject of the trial. Some of the recovered firearms had also been stolen during some of those robberies. Among other things, the appellate court found that the convictions were proper on application of the doctrine of liability of co-perpetrators.

[6] In arguing prospects of success on appeal the applicant asked this Court to have regard to his heads of argument filed at the Supreme Court in support of the appeal itself. That is not proper. Those heads of argument were filed in support of the appeal pending before the Supreme Court. They were not filed in support of his application for bail pending appeal. The impropriety was compounded by the fact that in his oral submissions for bail pending appeal the applicant effectively argued the appeal which is pending before the Supreme Court.

[7] I do not think that there is any likelihood of delay before the appeal is heard. The record of proceedings has already been fully transcribed. As a self-actor the applicant is not required to file heads of argument to motivate his grounds of appeal. However, he has filed heads of argument all the same. He told me that the Registrar of the Supreme Court has written to the respondent calling upon her to file heads of argument. All this is evidence that the appeal is likely to be set down for hearing soon. Therefore, I am satisfied that there is no prejudice to the applicant were he to argue his appeal while serving the sentences passed on him.

[8] As a convicted and serving prisoner, the applicant no longer has a right to liberty. This weighs against his release on bail.

[9] The applicant was convicted of serious offences. While the applicant received individual sentences for the crimes, the total, effective sentence that he is serving is fifty-two years imprisonment. His appeal to this Court was confined to attacking the correctness of the convictions. Consequently, the appeal to the Supreme Court does not question the propriety of the sentences. What this means is that the applicant is aware that if the appeal against the convictions fails he will continue to serve the remainder of the lengthy custodial sentences. The fear of resumed lengthy incarceration will incentivize the applicant to abscond if he is admitted to bail pending appeal.

[10] Indeed, to admit the applicant to bail at this stage will cause the public to lose confidence in the criminal justice system, in particular the bail system. Finality to litigation demands that the applicant should remain available to enable and expedite the hearing and determination of his appeal. If his appeal succeeds then he will be free for all time. In the event that the appeal fails he will continue serving the sentence. I find support for this approach in *S* v *Labuschagne* (supra) where GWAUNZA JA (as she then was) at 649E, quoted the following sentiments of HENOCHSBERG J in *R* v *Mthembu* 1961(3) SA 468(8):

> "…I wish to reiterate what has been repeatedly stated by our courts and indeed by Courts in other jurisdictions, that it is improper to allow people convicted of serious crimes to be walking in the streets instead of serving their sentences when the prospects of success are non-existent. Society would lose faith in the system and revolt. This is a proper case, in my view, where the applicant should prosecute his appeal while serving his sentences."

[11] This I add. Even if I had found that there are prospects of success on appeal I would still have dismissed the application for two reasons. Firstly, prospects of success are exactly that. They mean that the appeal may or may not succeed. Put otherwise, success of the appeal is not guaranteed. Secondly, every other factor relevant to the determination of this application has been resolved against the applicant. This in itself outweighs the force of the sole factor of prospects of success on appeal, had I found that such prospects exist. A determination of where

the interests of the administration of justice lie is a balancing exercise. The applicant has failed to tip the balance in his favour.

[12] The application for bail pending appeal be and is dismissed.

CHIKOWERO J: …….

The National Prosecuting Authority, Respondent's Legal Practitioners